

FINDINGS OF FACT

The Court makes the following findings of fact:

1. Petitioner was charged with those offenses indicated in the table on Side One.
2. Said charges were disposed of by a dismissal that was not a G.S. 15A-1008 dismissal for lack of capacity to proceed.
3. (If the defendant was charged with multiple offenses, check one of the following)

- ☐ a. The defendant was charged with multiple offenses, and all of the charges were dismissed.
- ☐ b. The defendant was charged with multiple offenses, and while the charges listed in the table on Side One were dismissed, there were additional charges that resulted in a conviction on the day of the dismissal or had not yet reached final disposition.

NOTE TO COURT: "If a person is charged with multiple offenses and any charges are dismissed, then that person or the district attorney may petition to have each of the dismissed charges expunged. If the court finds that all of the charges were dismissed, the court shall order the expunction. If the court finds that any charge resulted in a conviction on the day of the dismissal or had not yet reached final disposition, the court may order the expunction of any charge that was dismissed." G.S. 15A-146(a1).

- ☐ 4. There is a civil revocation record that resulted from the offense(s) the petitioner is seeking to expunge.
5. Expunction of the dismissed offense(s) listed on Side One ☐ should ☐ should not be granted. If not, it is because:

ORDER

Therefore, the Court hereby ORDERS:

- ☐ 1. The petition is granted. It is ordered that any and all entries relating to the petitioner's apprehension, charge, trial, or conviction and any civil revocation of his/her drivers license resulting from the dismissed criminal charge shall be expunged from the records of the court. All law enforcement agencies, the Department of Adult Correction, the Division of Motor Vehicles, and any other State or local government agency identified on Side One and on any AOC-CR-285 form that is attached to this petition shall expunge from all official records any entries relating to the person's charge, conviction, if any, and any civil revocation of his/her drivers license resulting from the dismissed criminal charge. No agency shall expunge a record of a civil revocation entered pursuant to G.S. 20-16.2, no agency shall expunge a record of a civil revocation prior to the final disposition of any pending civil or criminal charge based upon the civil revocation, and the Division of Motor Vehicles shall not expunge records for which expunction is otherwise prohibited by G.S. 15A-151.
- ☐ 2. For the reason(s) identified in Finding No. 5, the petition is denied.

NOTE TO CLERK: If denied, file this Order in the case file. Upon expiration of the deadline for appeal from a denial of this Order, destroy any documentation provided with the petition, such as a criminal history report. If granted, send a certified copy of this Order to the petitioner at the address listed on Side One or an updated address as provided by the petitioner.

Date	Name Of Presiding Judge (type or print)	Signature Of Presiding Judge
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CERTIFICATION BY CLERK

I hereby certify that this form is a true and complete copy of the original in this case, and if granted, a certified copy of this Order was sent on the date shown below to the petitioner, the State Bureau of Investigation, the Department of Adult Correction, the Division of Motor Vehicles, and to the arresting agency and any other State or local government agency identified on Side One and on any attachment to this petition.

Date	Name (type or print)	Signature Of Clerk	☐ Dep. CSC ☐ Asst. CSC ☐ Clerk Of Superior Court	SEAL
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NOTE TO CLERK: If granted, **always** send a certified copy of this Order under seal to the petitioner, to **all** the agencies listed in Certification By Clerk above, and to the NCAOC. Send copies for the arresting agency and additional agencies to the addresses provided by the petitioner. Send SBI, DAC, DMV, and NCAOC copies to:

State Bureau of Investigation Attn: Expunction Unit 3320 Garner Road Raleigh, NC 27610	NC Department of Adult Correction Attn: Combined Records Section 4226 Mail Service Center Raleigh, NC 27699-4226	NC Division of Motor Vehicles, Driver and Vehicle Services, Driver Assistance Branch Attn: Hearings/Adjudication Unit 3118 Mail Service Center Raleigh, NC 27699-3118	NC Administrative Office of the Courts Attn: Records Officer PO Box 2448 Raleigh, NC 27602
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NOTE TO PETITIONER: If this petition is granted, the clerk of superior court will send you a certified copy of the final order for your records at the address listed on Side One. If you move, you must notify the clerk in writing of your change of address in order to receive a certified copy. After the case is expunged, the clerk of superior court will have no record of the case and will be unable to provide you with any documentation of the case. This includes the expunction order; it will be destroyed with the case file.